

STATE OF NEW YORK

6412--A

2025-2026 Regular Sessions

IN SENATE

March 13, 2025

Introduced by Sen. O'MARA -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, in relation to enacting the "ratepayer disclosure and transparency act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "ratepayer
2 disclosure and transparency act".

3 § 2. The public service law is amended by adding a new section 28 to
4 read as follows:

5 § 28. Monthly disclosure and transparency report. 1. The commission in
6 consultation with the New York state energy research and development
7 authority shall report monthly the estimated or actual ratepayer costs
8 and benefits of any mandated state energy program, including but not
9 limited to programs associated with the New York climate leadership and
10 community protection act, the renewable portfolio standard, the energy
11 efficiency portfolio standard, the regional greenhouse gas initiative,
12 zero-emissions energy credits, renewable energy credits, the temporary
13 state energy and utility service conservation assessment, and the
14 systems benefit charge, to the governor, the temporary president of the
15 senate, the speaker of the assembly, the senate minority leader, the
16 assembly minority leader, and the comptroller by the last day of each
17 month.

18 2. The commission shall create itemized lists of all of the costs
19 associated with any of the programs listed under subdivision one of this
20 section or their successor programs as well as any other such program
21 that will or may cost ratepayers money. Such itemized lists shall be
22 clearly displayed on the utility billing documents of every resident of
23 the state on each month's bill, with the name of each such program list-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 ed in either sequential line bullet points or sequential line numbering,
2 including but not limited to the following programs or initiatives:
3 clean energy standard tier one, clean energy standard tier two, clean
4 energy standard tier three, clean energy standard tier four, offshore
5 wind initiative, clean energy fund, electric energy efficiency programs,
6 gas energy efficiency programs, electric heat pump programs, electric
7 vehicle infrastructure investments, electric generation facility cessa-
8 tion mitigation program, public policy transmission projects, any local
9 transmission and distribution projects, earnings adjustment mechanisms,
10 programs that incentivize distributed energy resources, and energy stor-
11 age projects.

12 3. All information reported by the public service commission as
13 required under subdivisions one and two of this section shall be made
14 available as a public record and posted to the public service commis-
15 sion's website, the comptroller's website, the New York state energy
16 research and development authority's website, and the department of
17 public service's energy affordability program's website, after submittal
18 to the governor, the temporary president of the senate, the speaker of
19 the assembly, the senate minority leader, the assembly minority leader,
20 and the comptroller.

21 4. The commission is hereby authorized and directed to promulgate
22 rules and regulations necessary to implement the provisions of this
23 section.

24 § 3. This act shall take effect immediately.